



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 01, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 10850
(FOURTEENTH REVISION)

EXPIRATION DATE: 2026-06-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: ASK Chemicals LLC
Dublin, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of DOT 4BW cylinders subjected to a complete external visual inspection in lieu of the periodic hydrostatic retest. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 180.209(g) in that cylinders are subjected to a complete external visual inspection in lieu of the periodic hydrostatic retest.
5. BASIS: This special permit is based on ASK Chemicals LLC application dated July 26, 2022, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Amines, flammable, corrosive, n.o.s. (N,N-Dimethylisopropylamine)	3	UN2733	II
Amines, flammable, corrosive, n.o.s. (Dimethylethylamine)	3	UN2733	II
Dimethyl-N-propylamine	3	UN2266	II
Triethylamine	3	UN1296	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are DOT 4BW cylinders with a maximum water capacity of 1,000 pounds. The cylinders may not contain over 110 gallons of Dimethylethylamine, Triethylamine, N,N-Dimethylisopropylamine, or Dimethyl-N-propylamine. The cylinders may not be pressurized except for the purpose of removing their contents. The maximum pressure to be used for this purpose is 20 psig. Each cylinder must be painted.

b. TESTING: Each cylinder must be subjected to at least one hydrostatic retest according to the requirements in § 180.205(g). In lieu of subsequent internal visual examination and hydrostatic retests, each cylinder must be subjected to complete external visual inspections at five-year intervals. External visual inspections must comply with the following:

- (1) Inspections must be in accordance with CGA Pamphlet C-6.
- (2) Inspections must be made only by a person competent in external visual inspection of DOT 4BW cylinders.
- (3) The results of the inspections must be recorded and maintained in accordance with § 180.215(b).

c. OPERATIONAL CONTROLS:

- (1) Prior to each refilling and shipping, the cylinders must be visually inspected for container integrity in accordance with § 173.301(a)(2).

(2) Dimethylethylamine, Triethylamine, N,N-Dimethylisopropylamine, or Dimethyl-N-propylamine must contain no more than 0.2% water when transported in cylinders authorized by this special permit.

(3) Each cylinder must be used exclusively to transport Dimethylethylamine, Triethylamine, N,N-Dimethylisopropylamine, or Dimethyl-N-propylamine throughout its service life. If for any reason the cylinder is removed from the authorized Dimethylethylamine, Triethylamine, N,N-Dimethylisopropylamine, or Dimethyl-N-propylamine service, the cylinder must have all DOT specification markings permanently removed and must be scrapped.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING:

(1) Cylinders passing the prescribed external visual inspection must be marked in accordance with the requirements specified in § 180.213(f)(5).

(2) The outside of each cylinder must be plainly and durably marked "DOT-SP 10850".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: This special permit imposes no additional modal requirements other than as required in the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

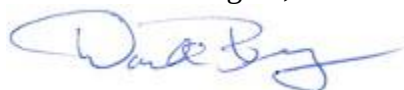
Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-13.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SG/NICKS